CIC AND SIC — RIGHT TO INFORMATION ACT, 2005

Continuous statutory route: definitions -> request -> exemptions -> institutions -> remedies -> accountability

CORE | CURRENT LAW: 8 SEP 2026 | 12-STAGE MASTER | STATUTORY, NOT CONSTITUTIONAL

01 IDENTITY + CHRONOLOGY

Constitutional root

Article 19(1)(a) right-to-know doctrine; Raj Narain (1975) and S.P. Gupta (1981).

Statutory machinery

RTI Act, 2005 creates CIC/SIC, PIOs, requests, appeals, exemptions and penalties.

Timeline

15 Jun 2005 assent -> 12 Oct 2005 full operation -> 2019 service recast -> 13 Nov 2025 privacy-clause substitution.

Boundary

Statutory and quasi-judicial; not a constitutional court or general grievance body.

02 DEFINITIONS + PUBLIC AUTHORITY

Section 2(f)

Material in any form, plus private-body information legally accessible to a public authority.

Section 2(j)

Inspection; notes/extracts; certified copies; certified samples; electronic access.

Section 2(h)

Legal-source bodies plus owned, substantially controlled/financed bodies and substantially financed NGOs.

Cases

CBSE: held records. Thalappalam: substantial control. DAV College Trust: material direct/indirect finance.

03 PROACTIVE DISCLOSURE + REQUEST

Section 4

Catalogue/index records; computerise where appropriate; publish duties, rules, budgets, subsidies, concessions, PIOs, policy facts and reasons.

Sections 5-6

PIO decides; APIO forwards (+5 days); no reasons; assist oral request; transfer within 5 days.

Section 7 clocks

30 days ordinary | 48 hours life/liberty | silence deemed refusal | delayed supply free.

Answer line

RTI turns access from administrative grace into a reason-free, time-bound statutory claim.

04 ROLE FIREWALL

PIO

Primary access decision and reasoned communication.

FAA

Senior departmental officer deciding first appeal.

CIC / SIC

Section 18 inquiry; section 19 second appeal; section 20 consequences.

Court + limits

Articles 226/32 review. No record creation, service grant, prosecution, exemption rewrite or general contempt.

05 EXEMPTIONS + PARTIAL DISCLOSURE

Section 8

Specific protected interests -> identify likely harm.

Overrides

Section 8(2) public-interest balance; section 8(3) twenty-year rule except (a), (c), (i).

Sections 9-10

Non-State copyright; sever and disclose reasonably separable material.

Section 11 + privacy

Third-party 5/10/40-day procedure, no veto. Current 8(1)(j): information relating to personal information.

06 CENTRAL COMMISSION — ss.12-14

Composition

Chief Information Commissioner + up to 10 Information Commissioners.

Appointment

President <- PM + Lok Sabha LoP/deemed leader + nominated Union Cabinet Minister.

Eligibility

Eminent public life; listed multidisciplinary knowledge/experience fields.

Removal

President; Supreme Court inquiry for proved misbehaviour/incapacity; separate direct statutory grounds.

Removal

President; Supreme Court inquiry for proved misbehaviour/incapacity; separate direct statutory grounds.

07 STATE COMMISSION — ss.15-17

Composition

State Chief Information Commissioner + up to 10 State Information Commissioners.

Appointment

Governor <- CM + Assembly LoP/deemed leader + nominated State Cabinet Minister.

Jurisdiction

Ordinarily State public authorities; applicant residence does not determine forum.

Removal

Governor; Supreme Court inquiry for proved misbehaviour/incapacity. Do not import SHRC rules.

08 2019 ACT / RULES DECODE

Before

Act fixed five years and Election-Commission-linked salary/status.

Amendment

Term, pay, allowances and service conditions moved to Central prescription.

Rules

Three-year term; Central Chief Rs 2.50 lakh; Central IC/State Chief/State IC Rs 2.25 lakh.

Surviving Act safeguards

Age 65; selection; same-office reappointment bars; <=5-year aggregate after IC-to-Chief elevation; protected removal.

09 COMPLAINT v APPEAL

Section 18 complaint

No PIO/acceptance, denial, delay, fee, false/incomplete/misleading information or other access failure.

Inquiry

Summons, oath, affidavits, requisition and inspection; possible section 20 consequence.

Section 19 appeal

First appeal 30 days -> second appeal 90 days -> PIO bears denial burden -> binding decision.

State of Manipur (2011)

Complaint inquiry is not the substitute route for a disclosure order.

10 REMEDIES + ACCOUNTABILITY

Compliance

Disclosure, PIO appointment, proactive publication, record reform, training and reporting.

Compensation

Public authority repairs applicant loss or detriment.

Penalty

Responsible PIO: Rs 250/day, maximum Rs 25,000; hearing and reasonable/diligent defence.

Discipline

Persistent default -> recommendation under service rules; not criminal prosecution.

11 OVERRIDE + SECURITY + REPORTING

Sections 22-23

RTI overrides inconsistent external law; own limits remain. Ordinary proceeding bar; writ review survives.

Section 24

Listed security bodies generally excluded; corruption exception; human-rights approval + 45 days.

Section 25

Annual data/report -> appropriate Government -> Parliament or State Legislature.

Section 26

Awareness, disadvantaged-community outreach, PIO training and updated practical guide.

12 CASES + PERFORMANCE + VERDICT

Case controls

Girish: old privacy clause. Jayantilal: no blanket RBI fiduciary shield. CJI office case: public authority + balance.

Democratic context

Electoral Bonds (2024): political-funding information supports informed voting; no extra CIC jurisdiction.

Failure points

Appointments, backlog, records, weak FAA review, inconsistent penalty, non-compliance and digital divide.

Qualified verdict

Binding teeth exist; autonomy, capacity, records, inclusive access and proportional privacy decide real accountability.